

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404999	RENTERIA VS KIA AMERICA, INC.	MOTION TO TAX COSTS

Tentative Ruling:

There is no dispute that KMA is the prevailing party in this action after jury trial and judgment. Plaintiffs challenge specific entries in the MOC:

Item No. 1 (Filing Fees)

Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiffs argue that filing fees for an unnecessary protective order and other pleading (\$277.91) and e-filing service costs (\$130.43) should be taxed as not reasonably necessary to the conduct of the litigation. They assert that simple compliance with the Discovery Act and using KMA's trial printer could have resolved some of these unnecessary costs. They assert that incurring e-filing fees for preference are not allowed.

In response, KMA asserts that Riverside County Superior Court Local Rule 3118 requires electronic filings, for which such costs are recoverable. (CCP § 1033.5(a)(14).) It adds that Plaintiffs agreed to the stipulated protective order. And, the e-filing and service fees were for various documents as stated in the MOC.

The filing fees in Item No. 1 in the amount of \$804.77 are recoverable and not taxed.

Item No. 4 (Deposition Costs)

CCP § 1033.5(a)(3) allows an award of expenses for "[t]aking, video recording, and transcribing necessary depositions including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." Here, KMA's MOC seeks \$10,744.10 of which Plaintiffs challenge \$4,262.65 as excessive because they include extra costs including interpreter fees and travel expenses.

In response, KMA asserts the costs incurred were to cover six depositions, which invoices are attached to the MOC including court reporters who conducted remote depositions. Notably, because the depositions were taken remotely, neither the attorneys nor witnesses had to travel to counsels' offices for depositions.

The deposition costs in Item No. 4 in the amount of \$10,744.10 are recoverable and not taxed.

Item No. 11 (Court reporter fees as established by statute)

Plaintiffs challenge \$945.00 claimed by KMA but, were not court-ordered as CCP § 1033.5(a)(9) requires. Plaintiffs seem to be challenging Item No. 9 – Court-ordered transcripts.

However, in response, KMA asserts it paid Steno Agency, Inc. this amount for litigation support and the fees were incurred for a rough transcript.

In reply, Plaintiffs re-assert that costs incurred for rough transcripts copies that were summarily excluded at trial from KMA's closing argument is not the type of costs anticipated in this line item. There is no authority that allows a prevailing Defendant in a lemon law case to recover for rough transcripts as an item of litigation support.

Item No. 11 for court reporter fees in the amount of \$945 related to the rough transcripts are taxed.

Item No. 13 (models, enlargements, and photocopies)

These items are recoverable if they were reasonably helpful to aid the trier of fact. (CCP § 1033.5(a)(13).) This means they must have been used at trial. (*Ladas v. Calif. State Auto. Assn.* (1993) 19 Cal.4th 761, 774.) Plaintiffs challenge \$3,118.54 in its entirety as they appear to be copies of trial binders, replacement exhibits, or possibly all documents that could have been done in court or at a much lower price. They add that the costs could have been avoided had KMA cooperated with Plaintiffs in providing exhibits to the Court.

In response, KMA asserts it had to prepare to defend all of Plaintiffs' possible arguments at trial for easy access and to assemble the exhibits. Plaintiffs have copies of all the exhibits but, have not pointed to any particular exhibit that was irrelevant or was unused at trial.

The cost for models, enlargements, and photocopies in Item No. 13 in the amount of \$3,118.54 are recoverable and not taxed.

Item No. 15 (Other)

Plaintiffs argue that only travel costs associated with taking depositions are allowed by CCP § 1033.5. KMA seeks travel costs (\$6,464.73) because their counsel is based in Los Angeles and stayed at the Mission Inn for rooms and meals.

In response, KMA asserts it is entitled to all claimed costs pursuant to CCP § 1033.5(c)(4). The travel costs were necessary and reasonable to allow KMA's counsel's trial team to stay near the courthouse during trial. The amounts are fair market value for the services rendered. And, all invoices are attached.

The cost for other in Item No. 15 in the amount of \$6,464.73 are recoverable and not taxed.

The motion is granted in part, denied in part. The motion is granted, and \$945.00 is taxed. The motion is denied, and \$14,254.26 are not taxed.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 8, 2026, by 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406588	YOUSSEF VS JAGUAR LAND ROVER NORTH AMERICA, LLC,	MOTION TO COMPEL DEPOSITION OF PLAINTIFF JOSEPH YOUSSEF

Tentative Ruling:

Code of Civil Procedure section 2024.020(a) requires discovery proceedings to be completed on or before 30 days before trial, and discovery motions to be heard 15 days before trial. Parties may stipulate to extend the time. (Id. at § 2024.060.) With a trial date of 7/17/26, the deadline to hear this motion was 7/2/26. The motion is untimely.

Accordingly, the motion is denied.